

NAPCS Unionization Research — State — Charter School Overview

West Virginia — NLRB R9 Jurisdiction — June 2026

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Section 1: State Overview

State	West Virginia
Labor Board	NLRB R9 — National Labor Relations Board — Region 9, Cincinnati, Ohio
Governing Law	National Labor Relations Act (NLRA). WV charter schools are private NLRA employers under NLRB R9 jurisdiction. WV Code §18-5G-3(b)(7) requires charter schools to employ their own personnel. WV Code §18-5-45a explicitly declares that public employees in West Virginia have no statutory right to collective bargaining, mediation, or arbitration — but this applies to district employees, not charter school employees organized under NLRB.
Federal NLRB Jurisdiction	YES — NLRB R9 (Cincinnati) has exclusive jurisdiction over all WV charter schools. WV charters are private employers under NLRA per WV Code §18-5G-3(b)(7). No state public employee labor board has charter school jurisdiction in WV.
Right-to-Work	Right-to-Work State — WV Code §21-1A-1 et seq. (West Virginia Workplace Freedom Act, effective July 1, 2016) (WV right-to-work applies to all collective bargaining contracts entered into, modified, renewed, or extended after July 1, 2016. Employees cannot be required to join a union or pay dues as a condition of employment. Separately, WV Code §18-5-45a declares that public school district employees have no right to collective bargaining — but this applies to district employees, not charter school employees who organize under NLRB private employer framework.)
For-Profit Operator Status	For-profit EMO management contracts permitted under state law
Card-Check Available	NO — NLRB jurisdiction — secret ballot election required. No card-check pathway available for WV charter school employees.
Registry Sweep	COMPLETE — June 2026 — 8 charter schools searched
Research Window	June 2026

Section 2: Charter School Landscape

Total charter schools in West Virginia: 8 (WV Professional Charter School Board (wvcharters.org/schools) — 8 authorized schools as of June 2026: Eastern Panhandle Preparatory Academy, West Virginia Academy, Virtual Preparatory Academy of WV, West Virginia Virtual Academy, WIN Academy, Clarksburg Classical Academy, Phalen Leadership Academies – WV, Wisdom Academy. NOTE: WV charter school community subject to active constitutional litigation — see OPEN_ITEMS.). Unionization census figures reflect confirmed organized schools as of the data currency date.

Category	Schools	% of Total	Notes
No Organizing Activity Documented	8	100% of universe	All 8 WV charter schools. NLRB R9 ADS: zero charter cases. No union press activity. RTW state.
TOTAL	8	100%	

Charter School Enrollment

Total Charter Enrollment	3,366 students — 1.4% of state K–12 enrollment (242,155 total K–12 students)
Students in CMO/EMO-Affiliated Charter Schools	2,802 students in network-affiliated schools — 83.2% of total charter enrollment

Students in Organized Charter Schools	0 students documented
Data Sources	Charter enrollment: NCES ELSI 2024–25 / Charter School Registry v133. Total K–12 state enrollment: NCES ELSI 2024–25 (all public schools). Both figures from the same source and year.

Section 3: Charter Management Organizations & Education Management Organizations

Charter Management Organizations (CMOs) are nonprofit networks. Education Management Organizations (EMOs) are for-profit management companies. Data sourced from Charter School Registry v133. Union penetration reflects confirmed organized schools as of the data currency date.

CMO / EMO Name	Type	State Campuses	National Campuses †	Organized in State	Total Enrollment
Accel Schools	Network‡	1	—	—	1,148
Stride Inc.	Network‡	1	—	—	1,654
TOTAL — All CMO/EMO Schools in West Virginia		2		—	2,802
of which organized				—	—

Total enrollment shown is the combined enrollment of all CMO/EMO network schools in West Virginia. Organized network schools: 0 organized schools in network-affiliated charters.

† National Campuses reflects total campuses operated by this network across all states, as reported in Charter School Registry v133. Provides context for networks operating in multiple states.

‡ Network (type unclassified) = operator present in Charter School Registry v133 but not yet classified in CMO Reference data. Contact registry project to add classification for these records.

2 network (type unclassified). Approximately 6 schools operate independently with no CMO/EMO affiliation. Source: Charter School Registry v133.

Section 4: Legal Framework & Charter School Overview

Findings are based on research as of June 2026.

1: Legal & Jurisdictional Framework National Labor Relations Act (NLRA). WV charter schools are private NLRA employers under NLRB R9 jurisdiction. WV Code §18-5G-3(b)(7) requires charter schools to employ their own personnel. WV Code §18-5-45a explicitly declares that public employees in West Virginia have no statutory right to collective bargaining, mediation, or arbitration — but this applies to district employees, not charter school employees organized under NLRB. West Virginia is a right-to-work state (WV Code §21-1A-1 et seq. (West Virginia Workplace Freedom Act, effective July 1, 2016)). Charter schools in West Virginia are subject to NLRB jurisdiction as private employers (NLRB R9). Secret ballot NLRB election is the required organizing pathway. Card-check is not available.
2: Charter School Structure West Virginia operates 8 open-enrollment charter schools, enrolling approximately 3,366 students. 2 charter management organizations and education management organizations operate in West Virginia. The largest networks by campus count are Accel Schools (1 campuses in state), Stride Inc. (1 campuses in state). Approximately 6 schools operate independently with no CMO or EMO affiliation. Network-level detail, including campus counts and total enrollment, appears in Section 3 above.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

West Virginia charter school press coverage in June 2026 focuses on constitutional litigation (circuit court permanent injunction, WV Supreme Court review). No press coverage of union organizing activity at any WV charter school was identified.

Stakeholder Communications

No union communications referencing WV charter school organizing were identified. WVEA and AFT-WV have not published any charter school organizing content. No charter school employer communications regarding union organizing were identified.

Authorizer & State Agency Positions

The WV Professional Charter School Board is focused on defending the charter law in ongoing constitutional litigation. No PCSB statements on charter school labor relations were identified.

Coalition & Advocacy Positions

No WV charter school community coalitions have published positions on charter school unionization.

Section 6: Contract & CBA Access Registry

No CBA records documented for this state.